

ARU secured financing successor — September 22, 2026

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State: OWNER_APPROVED_DIRECTION; LOCKED within the following scope on repository acceptance.

Owner: ARU / SHIH Treasury and Legal. **Prospective effective day:** September 22, 2026.

Owner decision and authority boundary

In the current September 22 session, the owner quoted the reviewed ARU common debt terms and selected “Use ARU-owned collateral; prepare its schedule”. Exact utterance time was not supplied. The selected variant is ARU-owned security, not the alternative unsecured facility. It grants no parent/subsidiary guarantee and leaves historical old-lien releases separate. This record implements that approved choice with ordinary fictional instrument and ownership precision; it does not claim recovery of an earlier signed credit agreement.

The [structured instrument](#) records newly authored synthetic ARU/SHIH consent, creditor-specific execution delegation and September 22 amendment execution. Nora Ashcombe executes for ARU in the fiction. Dana Keene's previously authored creditor-record role alone did not authorize amendments: a new instrument-specific delegation from the existing High Plains Infrastructure Credit, LLC is explicitly authored. Neither is a real signature or government filing. Repository acceptance and actual source availability remain separate from the fictional effective day.

Selected common terms

The existing \$22.5M original facility retains 6.75% ACT/365 ordinary interest, \$375,000 quarterly principal from April 7, 2026, and January 7, 2031 maturity of all then-unpaid principal. Voluntary prepayment is at par plus accrued ordinary interest, no premium, applied to the balloon first, with no reborrowing. There is no additional default-rate uplift, automatic interest capitalization or financial-maintenance covenant. This does not waive principal, ordinary accrued interest, reporting or other expressly retained duties. No financing amount, accounting entry, current payment or conditional refinancing receipt is added. The source forecast's monthly settlement approximation remains disclosed.

Quarterly reconciliations are due within 45 calendar days after quarter-end; the first prospective period is September 30, due November 14, 2026. Electronic delivery is possible on that day; no unapproved business-day payment adjustment is inferred. A discovered material payment or collateral dispute requires notice within five business days. Neither trigger occurrence nor performance is fabricated. The existing \$5M undrawn revolver model is not transformed into a committed credit facility.

Exact security grant and exclusions

The synthetic September 22 amendment grants the existing creditor security only in ARU's represented owned interests in **64 individually identified existing goods/fixture records**: 44 road-equipment records, six facility-track components and fourteen handling machines. The provider `python -m enterprise.closeout.debt_rights` emits the exhaustive schedule, source status/service dates, ownership origin, grant state and separate filing route. The fourteen handling machines already have owned/serviceable source status and ARU asset/facility identities; their ARU legal owner is newly confirmed by the synthetic September 22 officer inventory. That is ordinary completion of existing assets, not a new acquisition, state-issued title, missing cash transaction or collateral appraisal.

All listed road machines are existing available, maintained or commodity-qualified assets; model years are 2012–2023. Handling machines are serviceable 2014–2021 models; the source's “planned replacement reserve” concerns

future replacement, not present nonexistence. The six track components have explicit in-service dates, including three July 7, 2026 components; none is presented as pledged before September 22. Newly authored officer continuity confirmation retains these existing goods at the grant date. No after-acquired property sweep silently adds future replacements or planned assets.

Seven aggregate ARU facility records provide location/context only: they do **not** create seven additional independently valued properties or assert fee-simple title to land/buildings. The grant covers identified track goods/fixture interests, not underlying land, railway rights-of-way or a building mortgage. Facility records overlap physical components; no collateral valuation or loan-to-value ratio is asserted. The other 78 source records, BST/RWH/other-entity assets, leased equipment and customer property are excluded.

Genuine primary-authority check and filing states

Current official [Wyoming Title 34.1](#) was read September 22, 2026; the source records its retrieved SHA-256 and provisions. Section 9-108 requires identifiable collateral; 9-203 requires value, debtor rights and an authenticated grant; 1-204 includes a preexisting claim as value. ARU is a Wyoming corporation, making 9-307(e)/9-301 relevant to its filing jurisdiction. Certificate-of-title jurisdiction under 9-303 and title rules under 9-311 must be confirmed separately; incorporation alone does not determine vehicle title jurisdiction. The Wyoming county-title route is only a candidate until the governing certificate is confirmed. County filing under 9-501 differs from ordinary Secretary-of-State filing. Fixture filings need the additional real-property information in 9-502; priority is separate.

Applied fictional facts: existing debt, limited identified assets, represented ownership, and synthetic authentication support the **modeled grant**, subject to the stated rights. They do not establish perfection or priority. The implementation prepares the internal asset/filing-route schedule only: ordinary handling-goods route, candidate Wyoming vehicle county/title route subject to certificate-jurisdiction confirmation, and fixture real-property-record route remain distinct. Submission is NOT_SUBMITTED, acknowledgement NONE, perfection/priority NOT_ESTABLISHED. Vehicle title evidence and fixture parcel/record-owner descriptions remain exact filing-preparation dependencies; no fabricated VIN, cadastral description, filing number or first-priority assurance is used. The hypothetical existence of an earlier lien is not silently extinguished.

Supersession and surviving scope

Prospectively resolves the selected maturity/common terms and current ARU-only grant scope of DEBT-R01/R02, including DEBT-U02/U05 within these terms. It does not supersede frozen transaction source amounts or assert that the original closing facility was already secured on these terms. The \$13.5M historical payoff remains \$11.5M old term plus \$2M revolver; retained \$2.5M leases are excluded. Historical release population/receipts and current perfection remain separate residuals, not an unresolved owner preference about collateral.

No covenant compliance certificate is created where no financial test exists. Inspection must show obligations, due dates, source-to-ledger continuity and the unperfected security state honestly. The amendment does not change capital ownership or the tax/goodwill decisions.